

The Constitution Of
NIGERIAN MEDICAL LABORATORY
SCIENCE STUDENTS ASSOCIATION
(NIMELSSA)

LADOKE AKINTOLA UNIVERSITY OF
TECHNOLOGY, OGBOMOSO.

P.M.B 4000, OGBOMOSO

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Nigerian Medical Laboratory Science Students
Association.*

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LADOKITE'S ANTHEM

Arise oh sing: O Ladokites!

Ever militant; Ever reasonable,
Fighting for peace, Love and Justice,
Intimidation we condone not,
Great Ladokites! "I'm proud of you";
Great LAUTECH!; You make me whole,
Let's join hands, to make her great;
Excellency, integrity and service.

Oh Ladokite; The time has come, To foster
Unity and equity, Solidarity! In God we trust,
Remember efforts of all our heroes!
Great OSUTECH; that's our first name;
Great LAUTECH; this our pride,
Let's join hand to make her great;
Excellency, Integrity and service.
Aluta Continua, Victoria Ascerta!

NIMELSSA ANTHEM

Arise, O Nimelssa

The Root of Health Science

Arise to the call of medicine discovery

The Ancient Dream of health science was laid in the foundation of our results

In Union we stand being the light

When the world is darkened by sickness

As bedrock we stand being the light

When disease set in as dark cloud

O Great Nimelssaites of Nimelssa

We are the Gravity of medical world

We are the pivot of the school of health

We are the recipe of medicine

Arise O Nimelssa

Arise to the call of Hope, love and peace

PREAMBLE

Having fairly resolved to perpetuate the growth of the Nigerian Medical Laboratory Science Students' Association, LAUTECH, Ogbomoso, Oyo State, Nigeria, with a view to promoting our general welfare for the purpose of maintaining peaceful, progressive, healthy and honorable community.

To foster unity, peace and harmony with both the staffs, students and other departments, duly considering our stand as inseparable.

So as to play a noble role in National and International development of health delivery and development and to contribute our quota to progress and unity of our fatherland and the human race at large.

We the students of Medical Laboratory Science, LAUTECH, Ogbomoso, Oyo state, base our principles and philosophy on unity, peace, progress, equity and justice.

We hereby through our representative make, enact and give to ourselves and our posterity the following constitution.

SUPREMACY OF THE CONSTITUTION

This constitution shall prevail on any recommendation or decision taken by any committee, officers or members. Such recommendations or decisions shall to the extent of inconsistency be null and void.

The provision of this constitution is supreme and shall at all time have binding force on all authorities and members of the association.

The provision of this constitution shall remain on all students across various levels in the department.

Article 1

Introduction

Section A

Name, Motto, Logo and Correspondence

(i) This shall be the constitution of the Nigerian Medical Laboratory Science Students Association herein after referred to as NIMELSSA, LAUTECH CHAPTER.

(ii) The name of the association shall be known and call Nigerian Medical Laboratory Science Students Association (NIMELSSA).

(iii) The motto of the association shall be “Bedrock of Modern Medicine”

(iv) The Logo of the association shall consist of the following:

- a) An open book on which is inscribed the acronym “NIMELSSA”
- b) A microscope
- c) A snake wound onto a stick and a test-tube.

Above is a lighted Bunsen burner, all enclosed in a circle which repose on a large rock.

- ❖ The snake wound onto a stick represents the universal symbol of healing.
- ❖ Open book, the microscope and test tube above a lighted Bunsen burner signify the knowledge of the practice which is diligently acquired during the course of academic training.
- ❖ The circle signifies that all the activities of the association are within the limit of professional practice.
- ❖ The rock signifies the solid upon which the profession is built.

(iv) Colour of The Logo:

- (a) The open book shall have a white background and designed with black margin, the inscription on it shall be in red and black margin.
- (b) The microscope shall be in red.
- (c) The snake shall be in red and wound on a black stick.
- (d) The Bunsen burner shall be in white.

SECTION B

Aims and Objectives

- (i) To establish effective group communication with the department officials so that the right, privilege and obligation of the association members are maintained and protected.
- (ii) To broaden the knowledge of all students in the department through organizing lectures, seminars, symposium and excursion.
- (iii) To promote the social, cultural, intellect and recreation interest of its members.
- (iv) To discuss matters affecting the academic welfare of members of the association.
- (v) Campaigning and encouraging discipline, humility and dignity among students of the department.
- (vi) To maintain and enhance peace and harmony between the students, academic personnel and non-academic staffs of the department.

SECTION C

RIGHTS AND PRIVILEGES

All registered and financial members of this association shall have the following right;

- (i) Have equal opportunities to serve the association
- (ii) Be free to join other authorized students association in the institution
- (iii) Subject to (ii), members cannot join any political party or organization
- (iv) Charge any fraudulent members or Executive to NIMELSSA Senate through writing a seven(7) days notice before the house sitting
- (v) Freshers be subjected to welcoming orientation and symposium about the association and the department
- (vi) Honorarium as provided by this constitution shall be made available by the executives succeeding the former officers
- (vii) Graduating members be given a sendforth party
- (viii) Vote and be voted for.

NB: Payment of dues is mandatory for all members of the association. Penalty for non-payment shall be determined by the executives administration.

SPONSORING AUTHORITIES

The Grand Patron, Patroness and any individual or corporate body deemed fit shall be the sponsoring authority of the association.

SECTION D MEMBERSHIP

- (i) The payment of the annual due shall be a precondition to the annual registration of each students in the department.
- (ii) All student in the Department of Medical Laboratory Science, LAUTECH, Ogbomoso shall form the members

LIFE MEMBERSHIP

- (i) Executive may confer honorary life membership on any other person as a mark of honor for his/her distinguished service
- (ii) For the purpose of this section, a honor committee shall be constituted by the Executive to be recommended to the parliament for ratification, such persons worthy of the life membership
- (iii) Any person so conferred with honorary membership of the association shall be awarded a certificate signed by the Head of Department, NIMELSSA Senate President and the President of the association
- (iv) The Senate shall have the power to withdraw the certificate of honorary Life membership conferred on any recipient found in any way to have violated the spirit of this constitution or found wanting in any manner if a motion to that effect is moved and supported by 2/3 majority present and voting provided they form a quorum.

PATRONS

Functions of a Patron/Patroness

The Patron/Patroness shall:

- (i) Advice on smooth running of the association
- (ii) Be required to give maximum moral, financial and educational support to the association
- (iii) A person shall be deemed to have been appointed as a patron by a vote of not less than 2/3 of the members of the CEC ratified by 2/3 of Senate votes provided they form a quorum

MISCELLANEOUS / INTERPRETATION

- i) All masculine pronouns including feminine except otherwise stated
- ii) OATHS: (a). Both the Senate President and deputy senate president shall before take their seats in the opening meeting of the senate for parliamentary session take and recite before the entire members of that council oaths of allegiance which will be administered by the Chief Justice of the association.
(b). The oath shall be taken at the swear-in ceremony of the association

OATH OF OFFICE FOR THE CENTRAL EXECUTIVE COUNCIL, JUDICIAL AND SENATE AND THE COMMISSION AND COMMITTEE

I, _____, do solemnly swear that I will be faithful, bear true allegiance to the Nigerian Medical Laboratory Science Students' Association, LAUTECH Chapter; that as _____ of the association, I will discharge my duties to the best of my ability, faithfully and in accordance with the provisions of the association's constitution and law, and always in the interest of the integrity, well-being and good governance of the association; that I will not allow my personal interest to influence my official decisions; that I will do the best of my ability to preserve, protect, defend and abide by the constitution of the association; that in all circumstances, I will do the right to assist all the members of the association and all manners of people according to the constitution and the law, without fear or favour, affection or ill-will.

So, help me God/Allah/As appropriate.

FORFEITURE OF MEMBERSHIP

A person shall cease to be a member if:

- (i) If found guilty of any misconduct or criminal offence either by court of law or corporate body
- (ii) 2/3 majority of the senators present in the house suspend the membership of any member found guilty of contravening the decision of the house
- (iii) He drops dead
- (iv) He graduates from school
- (v) He cross out of the department
- (vi) He is expelled from school

ARTICLE II

The Executive

Section A

Limitation of Executive Authority

- (i) The Executive power of the association is hereby vested in the Central Executive Council
- (ii) The CEC shall be responsible for the financing of the budget of the Senate
- (iii) The Executive power of the Association include the execution and maintenance of this constitution and all matters with respect to which the Senate have to make rule and regulation i.e accountable to the Senate
- (iv) The executive shall be responsible to get freshers aware of the rights and privileges within their first five week of resumption to school

Nimelssa Biomedical Week

- (i) The committee shall be set up by the executive with the Vice-President as the Chairman and Social director as an automatic member.
- (ii) The committee shall organize all the activities of the association during the association's health week.
- (iii) The committee shall work jointly with the Chairman to ensure the success of the association health week.
- (iv) The committee shall consist of five (5) members, one from each level in addition to the automatic member.

SECTION B

Composition

- (i) The President
- (ii) The Vice President
- (iii) The General Secretary
- (iv) The Financial Secretary
- (v) The Assistant General Secretary
- (vi) The Public Relations Officer
- (vii) The Welfare Director
- (viii) The Social director
- (ix) The Librarian
- (x) The Sports director

Section C

Duties of the Executives

1. The Association President

the President shall;

- a. Be the head of the association and shall preside over all executive council meeting of the association
- b. Summon executive meetings through the General Secretary
- c. Be responsible for coordinating the activities of the other officers of the CEC
- d. Have power to refer disputes and matters bothering on discipline other than that of association employee to the Judicial Council
- e. Be a signatory to the association account
- f. Have a casting vote over tied issues on the Executive meeting of the association
- g. Be one of the official representatives of the association interest both within and outside the school and shall protect the image of association in accordance with the provision of the constitution
- h. Automatically be conferred with the highest honor of the association which is Grand Commander-of-NIMELSSA (GCN)
- i. Endorse all minutes read by the General Secretary
- j. Discharge all such duties reasonably incidental to his office
- k. Be held responsible for any misappropriation of funds coming into the association
- l. Be present at any Senate sitting when the need arises or forward notification of absence 48hours before sitting
- m. Make provision of honorarium for all the Officers of the association and must come from ONLY 400L at the time of election

2 The Vice President

The Vice President shall;

- a. Act on the responsibilities of the president in his absence
- b. Be responsible for the origination and execution of orientation program for fresh intake
- c. Chair the NIMELSSA HEALTH WEEK Committee
- d. Perform all duties as maybe assigned by the President
- e. Be responsible for the organization of lectures, debate, workshop, seminar and quizzes etc.
- f. May come from 300L & 400L at the time of election

3 The General Secretary

He shall;

- a. Be responsible for all the secretariat duties of the association
- b. On the instruction of the President call meetings and draw up agenda for such meetings
- c. Keep records and minutes of all meetings or attendance of all members also to be endorsed by the President at the end of such meetings
- d. Handle the affairs of the secretariat of the association
- e. Must come from ONLY 300L at the time of election
- f. Be a signatory to the association account
- g. Prepare and submit all reports to the President at least 14 days to handing over/dissolution

4. Assistant General Secretary

He shall;

- a. Deputize the General Secretary as occasion demands or at the absence of the General Secretary
- b. Write and keep minute of committee setup for the orientation program, health week and NIMELSSA day.
- c. Perform any duty assigned by the General Secretary
- d. Have names of all NIMELSSA members
- e. Take attendance of the officers at the CEC meeting
- f. Must come from ONLY 200L at the time of election

5. The Financial Secretary

He shall;

- a. Be responsible for preparing the financial record of the CEC
- b. Collect all money pay able to the association and issue receipt, such money should however be deposited in the bank within 24 hours
- c. Keep all receipts for transaction and submit such receipt for inspection
- d. Keep an impress of not more than two thousand naira (N2,000)
- e. Make a complete list of payer and default members from the AGS and issues corresponding receipts with a backup document not later than 2 weeks after close registration
- f. Be one of the signatories to the association account
- g. Issue out money as directed by the President provided it has been approved by the Senate
- h. Must come from ONLY 400L at the time of election

6. The Public Relations Officer

He shall;

- a. Be responsible for the publicity of all association activities both internally and externally on the association notice board
- b. Be the chairman of the editorial board/head of the editorial committee
- c. In consultation with the General Secretary issue release of statement on matters of general interest to the association
- d. Distribute the printed constitution to new members who paid for it
- e. Perform such function appointed to him by the President
- f. Must come from ONLY 200L at the time of election

7. Social Director

He shall;

- a. Be responsible for all social activities of the association
- b. Organize a send forth party for the graduating members
- c. Work in conjunction with the Vice president for the association's Health week
- d. Be the chairman of the social committee
- e. Be primarily a custodian and promoter of the Nigeria culture heritage
- f. See to the welfare of all members representing the association on social occasions/outing in conjunction with welfare director
- g. may come from 300L OR 400L at the time of election

8. Sport Director

He shall;

- a. Must be a keen sportsman
- b. Publish from time-to-time information to the general body of student on the progress in the sporting activities of the members of the association
- c. Be the chairman of the sport committee
- d. Promote and coordinate intra and inter-institutional activities
- e. Towards the effective discharge of his duties be assisted by the sport committee and shall preside over their meeting
- f. Be responsible for providing recreational facilities for the use of the association
- g. Direct all sport activities of the association
- h. Adopt a suitable means for improving the current standard of association's member sport activities
- i. May come from 300L OR 400L at the time of election

9.. Welfare Director

He shall;

- a. Be responsible for matters relating to the general welfares of all association members
- b. Be the chairman of the association welfare committee and transport committee
- c. Be responsible for the management of all association and other student welfare services
- d. Keep record of all association properties
- e. Perform such function as assigned by the president
- f. Must come from ONLY 400L at the time of election

10. The Librarian

He shall;

- a. Be in charge of the department library
- b. Responsible for the daily upkeep of the department library
- c. Responsible for keeping all journals belonging to the association
- d. Perform such functions as assigned by the President
- e. Must come from ONLY 300L at the time of election.

Selected Committee

There shall be the following selected committee by the Central Executive Committee (CEC) for the association which shall be ratified by the Senate.

- a. Sport Committee
- b. Academic Committee
- c. Social and Cultural Committee
- d. Welfare committee
- e. Press committee

SECTION A

Sports Committee

- (i) This shall be made up of four (4) members of the association, including the Sport director as Chairman
- (ii) He shall assist the director of sports in the effective discharge of his duties

SECTION B

Academic Committee

- (i) There shall be an academic committee having the Vice president of the association as the Chairman of the committee
- (ii) The committee shall see to the academic welfare of all students

SECTION C

Social and Cultural Committee

- (i) There shall be a social and cultural committee comprising of not more than five (5) members with the social director as Chairman
- (ii) The committee shall arrange for all social and cultural activities of the association including excursion and assist the social director in the discharge of his duties

SECTION D

Welfare Committee

- (i) Shall comprise of five (5) members with the welfare director as Chairman
- (ii) Shall see to the general welfare (other than academic welfare) matters
- (iii) Shall be responsible for planning ways and means of procuring a healthy environment on campus

- (iv) Shall be responsible for doing all such other duties that are reasonable incidental to the welfare of the association members

SECTION E

Press Committee

- (i) Shall consist of five(5) members chosen from each level
- (ii) Shall be responsible for the publication of the association magazine
- (iii) The committee shall be headed by the association P.R.O

ARTICLE III
THE LEGISLATURE

SECTION A

POWER

The legislative power of the Association is here-in vested in the Nigerian Medical Laboratory Science Students' Association Lautech Senate and the Congress

SECTION B

The Congress

- (i) The general assembly of the Nigeria Medical Laboratory Science Students Association shall hereafter be called "Congress".
- (ii) Congress shall debate on matters which in the opinion of the Central Executives or the Senate are beyond their power and shall have the final say on crucial and controversial matters.
- (iii) Congress meeting shall be called at the beginning and the end of an administrative tenure.
- (iv) All congress meetings should be attended with corporate wears unless stated otherwise.
- (v) The Senate President shall have the power to call normal congress meeting and shall preside over it but the President shall convene an extraordinary congress meeting when deemed necessary
- (vi) Extraordinary above refers to the other congresses that may be necessary during the cause of the administration. Such congress must be within 24hours notice.
- (vii) In case the Senate president fails to call for congress, 2/3 of the senators can summon the Senate president to call for the congress when the need arises

SECTION C

The Mace

- (i) It remains the property of the association and shall reside in the Office of the Senate President.
- (ii) It shall be a symbol of Authority, Honor and Power during Senate Proceedings.
- (iii) In the absence of the mace, the proceedings of the Senate shall be null and void.
- (iv) There shall be a macebearer who will be in charge of the mace during senate and congress meetings (not a principal officer).

The macebearer shall be elected through a simple majority vote within the senate and is irrespective of hierarchy.

SECTION D

Composition Of Senate

The NIMELSSA Senate shall be composed of;

- (i) Four(4) representatives from each level.
- (ii) For the 500level class, a senator shall come from each specialty unit, (if any).
- (iii) Subject to II, only members of the unit shall vote for their senators.
- (iv) Four (4) principal officers shall be elected from above i.e Senate President, Deputy Senate President, Clerk and the Chief Whip.
- (v) The representatives from each level will be chosen by a simple majority students from such level.
- (vi) The Senate shall function for one parliamentary year and shall stand dissolved thereafter.
- (vii) The senate shall be dissolved not later than 4weeks to the end of the current session

SECTION E

Function and Power of Senate

They shall;

- (i) Consider and approve the capital project/budget of the CEC at the first business meeting of that council which must be convened not later than 21 days and 7 days for extension (in case of unforeseen circumstances) after assumption of office/inception of tenure
- (ii) Consider proposals, motion and other matters raised in connection with or incidental to the provision of this constitution and shall transmit recommendations to the appropriate bodies for execution.
- (iii) Consider the progress report of the various committee of the association when deemed necessary.
- (iv) Upon a petition signed by 2/3 members of the parliament, including any two members of the CEC, review any proposal by the association Executive Council.
- (v) Shall approve nominees for offices at the SUG and FABAMSSA level.
- (vi) Members (senators) shall inform and disseminate matters relating to their classmate and the senate respectively before and immediately after her sitting procedure.
- (vii) Reject or approve name(s) of member(s) to be awarded certificate of fellowmen by the President.
- (viii) The senate shall act as check and balance to the CEC (i.e The Senate at discretion shall request for the State of Association from the Executive in any of their legislative business sitting).

SENATE PRESIDENT

- (i) There shall be a Senate President who shall be elected by a simple majority of members of council present at voting in the first or any other meeting for that purpose. Election shall be by secret ballot system
- (ii) He must come from 400L at the time of election and must be a returning senator (if any).
- (iii) The Senate President shall not vote in the meeting of the Senate but shall on a matter of must, have casting vote when there is a tie.
- (iv) The Senate President shall cause the resolution of the house to circulate after each sitting.
- (v) Unless removed, the Senate president shall hold office until the Election of a new Senate President.
- (vi) In the case of (v) above, the deputy Senate President shall preside at the council meeting whenever the probity of the Senate President is under consideration.
- (vii) The senate president shall make a final decision on any matters at any of her sittings and may use his/her discretion to rule over or on any such decision when the constitution is silent over any matter
- (viii) In case of (viii) above, the senate president may refer such matter to the Judicial Council
- (ix) The Senate President shall summon house sitting

DEPUTY SENATE PRESIDENT

- (i) Shall be elected by a simple majority of members present at voting at the inaugural meeting of the council
- (ii) He/she must come from 300L at the time of election
- (iii) Shall deputize in the absence of the Senate President
- (iv) Shall keep records of all attendance at all council meetings and must recommend for dismissal any member of the senate who absents himself on two consecutive meeting of the Senate without the permission of the President or genuine reason tendered
- (v) Shall announce names of absentees at the end of every council meeting

THE CLERK

There shall be a clerk of the Senate whose duties shall be;

- (i) He/she must be elected by a simple majority of members present and voting at inaugural meeting of the council
- (ii) Be taking proper minutes of the senate and such other duties as that may allot to him or her
- (iii) Compile the proceeding of the senate for the parliamentary year for documentation in the association library
- (iv) Summon all senate meetings as directed by the Senate president and give notice of meetings at least 5days to the schedule date except for emergency sitting
- (v) To receive all motions, correspondence, and criticism passed to the Senate before her sittings
- (vi) Carry out any other functions as may be assigned to him by the senate President and must come from 200L at the time of election

CHIEF WHIP

- (i) He/she must be elected by a simple majority of members present and
Voting at inaugural meeting of the council
- (ii) He shall maintain order at council meeting
- (iii) He shall bring to the notice of the speaker any matter that might tamper to
good government of council and council meetings
- (iv) In the absence of the chief whip, the sitting of the senate may elect one of
its members by a simple majority to act at the particular meeting only. He
must come from 100L at the time of election.

SECTION F

Code of Conduct and Ethics of the Senate

- (i) All senators in the NIMELSSA senate should always be formally
dressed at all sittings or meeting of the Senate.
- (ii) The dress code shall be as follows;
 - a. Male senators shall wear trousers with shirt being packed in. They
should always put on tie and shoe always.
 - b. Female senators should wear shirt and skirt (and jacket if possible)
as well as shoe.
- (iii) All senators in a sitting or meeting must be with a copy of the association's
constitution.
- (iv) All senators must maintain law and order in the Senate.
- (v) Any accused or confirmed senator involved in any crime or malpractice or abuse of
office shall be suspended for at least 3 sittings or indefinitely, based on the prescription
of the senate chief whip and adoption of all senators present and prescription by the
senate president

SECTION G

Meeting, Quorum and Voting in the Senate

- (i) The Senate shall meet at least 6 times in a parliamentary year
- (ii) In case the senate president fails to convene a house sitting,
2/3 Majority of the senators can summon the senate president to
call for a house sitting
- (iii) If objection is taken by any member of senate that those present are
fewer than 2/3 of members of council and the person presiding
knows that number present is still less than 2/3 of all members of
Senate, he shall therefore adjourn the house
- (iv) Without prejudice to any other provision of this constitution, any
Question, proposal for decision in the senate shall be determined
by simple majority of members present and voting and the person
Presiding shall cast a decisive vote when there is a tie
- (v) In case of sub-section (ii) of this section fails to hold due to
emergency or the likes, 1/3 of the senators can summon the senate
president to call for house sitting.

SECTION H

Right of Attendance

- (i) All senate members(senators) for that parliamentary year have the
Right to attend sittings.
- (ii) Only accredited delegates and only other congress members granted
Observer status may attend senate meeting, only the member of that
Council shall take part in its proceedings, unless otherwise the
Senate President make a proposal, bill or motion from the observer
- (ii) Any person who is not a member of the Senate may be allowed by the
Senate president to address the house

SECTION I

Unqualified Person(s) sitting or voting in Senate

- (i) Any unqualified student(s) sitting or voting in the senate shall be able to be tried by the Judicial council in accordance with the provisions of this constitution and on recommendation of the senate president
- (ii) Unqualified member(s) voting at the senate meeting will invalidate such vote
- (iii) Without prejudice to section G (iv) of this article with the presence or participating of any person not entitled to be present at or participate in the proceedings of the senate shall invalidate those proceedings

SECTION J

Senate Committees

1. Budget and Finance Committee

- (a) There shall be a budgetary and finance committee of the senate comprising of four members including the Chairman
- (b) Member of the committee shall be drawn from within the new senate and shall be inaugurated by the new senate at its business meeting
- (c) The committee shall at the beginning of every parliamentary year receive or call and deliberate on the budget of the CEC, SENATE and JUDICIARY as well as other organs of the association and commission and submit a comprehensive budgetary proposal in conjunction with the finance committee of the CEC to the SENATE.
- (d) The committee shall carry out other duties as may be allocated to it
- (e) Shall be duly in charge of all funds coming to the senate from the CEC for running of the senate activities
- (f) The budget and finance committee shall keep an advance fund of not more than #2,000.
- (g) The budget and finance chairman shall be held responsible for any misappropriation of funds coming into the senate

2. Senate Committee on Special Duties

- (a) There shall be a special duties committee of the senate comprising of four members including the Chairman.
- (b) Member of the committee shall be drawn from within the new senate and shall be inaugurated by the new senate at its business meeting
- (c) The committee shall be in charge of special function and duties of the Senate as may be allocated to it by the senate

3. Selection of Senate Committee member and Chairman

- (a) The four members for each of the senate committee shall be selected Through nomination at the first business meeting of the elected and Sworn-in senators
- (b) The chairmanship candidate for each of the committee shall be nominated by the senate members from within the four member of the committee
- (c) The Chairman of each committee will emerge through simple majority declared by the senate among members present and voting

Auditing Committee

- (i) This committee shall be setup at the last congress of the association
- (ii) The committee shall consist of a chairman and five(5) members each from each level
- (iii) They shall collect all records from the financial secretary for proper auditing
- (iv) The auditors must not be in any committee in the senate or CEC before and during their time in office
- (v) The auditing committee shall at the end of their tenure present their findings to the senate

ARTICLE V

SECTION A

JUDICIARY COUNCIL

- (1) The judicial power of the association is here-in vested in the judiciary Council and shall be the third arm of the association
- (2) Composition of the judiciary council
 - (i) Shall be constituted at the beginning of each parliamentary year by the new senate, after submission of the letter have been made before/after by the first senate business meeting
 - (ii) Shall be made up of five (5) members comprising of Chief Justice, the Registrar and other Justices cutting across each constituency.
 - (iii) Hierarchy shall be employed in the allocation of posts.
 - (iv) The Registrar and the Chief Justice must be someone who is well exposed, can interpret the constitution properly and must be a person serving for the second consecutive term in the judiciary council, (if any).
 - (v) All members shall not be either from SRC, Senate or CEC and members shall be of tested integrity and should have substantial control experience in student Politics.
 - (vi) The outgoing Chief Justice shall function until a new Chief Justice is elected from the new Senate.
 - (vii) Also the Registrar shall be held responsible for any misappropriation of funds coming into the judiciary council.
 - (viii) The council shall administer judgment and punishment through the Head of the Department at the recommendation of the judiciary.

3. Position in the Judiciary Council and Qualification

- (i) The chief justice of the association shall be addressed as Honorable Justice. Automatically for he/she is serving a second term
- (ii) All judges under a particular chief justice including Registrar shall be addressed as Justice.

- (iii) If the chief justice from investigation is corrupt or involved in any form of crime
e.g bribery, such as chief justice shall be removed by Senate following a2/3vote
- (iv) Registrar shall either be a pre-clinical student or clinical student and must have
served two terms, (if any).
- (v) Chief justice shall be a clinical student and must have served two
terms, (if any).

SECTION B

Function and Power of the Judiciary

- (i) The council shall serve as the association court of justice
- (ii) The council shall decide on all questions concerning the interpretation
of the constitution referred to it under the function of the electoral
Commission
- (iii) The council shall settle cases of dispute among students
- (iv) The council shall take active part and also decide on all petitions referred
to it during election period thus serves as the second election petition
tribunal of the association
- (v) The council shall have power to dismiss any election commission member
that is unfaithful to his duties
- (vi) The council shall decide on all cases referred to it between the senate and
CEC
- (vii) The council shall also settle cases or dispute among students and have an
external body preferably the staff advisor
- (viii) The Registrar shall be the second in command to the chief justice and shall serve
as the secretary of the judicial Council
- (ix) Quorum in the council shall be a simple majority of its members

SECTION C

Appointment of the Chief Justice, Registrar and other Judges

- (i) Candidates interested in becoming the association Chief Justice, Registrar or judge in the judiciary council of the association shall write and submit letter to the newly constituted senate after the swearing in ceremony of association officer and before the inauguration of the newly constituted Senate
- (ii) Such person shall indicate whether he or she is contesting the seat of Chief Justice or a Judge
- (iii) After inauguration and swearing in ceremony of the newly elected senator at the first business meeting, election into the office of the Chief Justice, Registrar other three judges shall be conducted through voting by all the newly elected and sworn-in senators.
- (iv) Winners of the seats shall be declared by the senate president after a single majority vote
- (v) Council shall be inducted by the new association president

SECTION D

Code of Conduct of Judiciary Council

- (i) Shall be in charge of mace, association properties during which the period which the CEC and senate have been dissolved
- (ii) The council shall where necessary through staff adviser recommend to the appropriate body the discipline of any association member on the basis of its finding; subject to (2/3) two third of judiciary council member present and voting at a meeting provided they form a quorum
- (iii) Quorum in the council shall be (2/3) two third its membership and decision must be simple majority
- (iv) The Chairman (Chief Justice) shall summon and preside over all meetings of the council
- (v) The council shall commence work within 48 hours of the receipt of any matter referred to it
- (vi) No member of the council shall take up any other office within the association during its tenure

- (vii) The outgoing chief justice which will remain un-dissolved shall take the Swearing in of the newly elected CEC
- (viii) The Chairman or any member of the council may be removed from office if a motion of removal is passed by 2/3 of members of senate present and voting at a meeting provided they form a quorum
- (ix) The council shall regulate its own procedure provided nothing does conflict with the rule and principle of natural justice
- (x) In case of subsection(vii) of this section fails to hold prior to resignation or the likes of the chairman , the judicial chairman must resign before the last house sitting so that the new chairman will be elected among the members

ARTICLE VI

SECTION A

ELECTORAL COMMISSION

- (i) This commission shall be constituted by the members of the outgoing Senate and made up of 7 members including the electoral chairman.
- (ii) The electoral commission shall be referred to as Independent NIMELSSA Electoral Commission (INEC)
- (iii). The seven members of the commission shall come from part 1 to part 5 Constituencies with three members from part 5 and one from other levels.
- (iv) All activities of the commission shall be financed by the association and fund be released 48hours on its constitution
- (v). The commission shall be responsible for the senate in the first instance and shall be responsible to the congress after senate stand dissolved and shall not be controlled by any person or body or group of persons and the entire commission can be removed by 2/3 majority votes of the senate present and voting provided they form a Quorum

Function of the Electoral Commission

- (i) Shall be charged with the process of conducting all major election of the association and shall make the result available appropriately
- (ii) Shall scrutinize, ratify and clear all aspirants contesting for any particular post(s) of the association
- (iii) The 7 electoral officers shall be subjected to the judiciary council and the chairman shall report any erring electoral officer to the chief justice
- (iv) Any result(s) to be contested or petitioned by any contestant(s) shall be done within 48hours after the association major notice boards
- (v) The Chairman of the committee shall be the committee member from part5 and the secretary shall be elected at the committee first meeting

SECTION B

ELECTION OBSERVER

- (i) There shall be election observers invited by the judiciary council or by the electoral chairman to witness the process of the election.
- (ii) The electoral chairman may come in, in the absence of the judiciary council.
- (iii) The observers shall be from the outside department
- (iv) The observers shall not vote or canvass for any candidate(s)
- (v) The observers can be invited by the judiciary council as well as election petition as a witness, if there is any dispute between the electoral Commission and any candidate(s)

SECTION C

ORDER

- (i) The first election shall be the election of members to represent each of the four constituencies or classes in the senate
- (ii) Secondly, the election into the offices of the INEC and SUG representatives for the department
- (iii) Bye-election into the vacant offices after the major election shall be the last election

SECTION D

ELIGIBILITY

- (i) Subjects to the provision of this constitution only registered and financial members of this association who have spent at least a session in the Department shall be eligible to contest in major election
- (ii) All financial and registered members of this association excluding part1 members who pay the annual association due, shall be eligible to vote in all major election
- (iii) All cross-over, transfer and direct entry students who have been registered as members of the association and who pay the annual association due shall be eligible to vote in all elections and must have spent at least a session in the department before they can be eligible to contest in any CEC election in the association. However they are eligible to contest for positions to the senate and the judicial council.
- (iv) No agent(s) presented by candidate shall be disqualified unless if
 - (a) The agent(s)is found unruly to election rule and regulations
 - (b) The agent(s)is not a member of the association
 - (c) The agent(s) is not a registered and financial member of the association
- (v) Any student running a parallel program in another school shall not be eligible to contest election into elective offices
- (vi) All aspiring candidates for any offices shall satisfy all questions and other requirements demanded by NEC before they can be eligible to contest
- (vii) Any association officer that is removed from office shall not be eligible to contest or hold any post again in the association while any association officer that willingly resigns from office can still Subsequently partake in association election only if he is found Not guilty of any offence or misappropriation, after his resignation
- (viii) Under no condition shall the SUG, SRC representative for MLS constituency hold any other offices or post simultaneously in the association.

SECTION E
MODE OF ELECTION

- (i) All elections shall be held by secret ballot system
- (ii) All election shall be conducted by the Independent NIMELSSA Electoral Commission
- (iii) The cost of nomination form shall be approved by majority of The INEC members present and voting provided they form a Quorum
- (iv) The commission shall rule on all election matter strictly in accordance to the provision of this constitution while all Petitions shall be referred to the judicial council
- (v) The commission has the right to reject any nomination forms with irregularities or not meeting with the stipulated condition
- (vi) The commission shall publish names of aspirants/contestants and their offices not later than 24hours before the election provided the election provided section H(iii) fails to hold
- (vii) In case of ties, the commission shall decide the winner via casting of their vote by the electoral members except the chairman
- (vii) The election shall come up four weeks to the end of the current academic session and swearing-in of the elected officers shall be organized by the electoral commission

SECTION F
ELECTORAL CHAIRMAN

- (i) He shall be elected by 2/3 majority of the senate present and voting provided they form a quorum
- (ii) He shall preside over the commission meeting and election
- (iii) He shall rule on matters on which the constitution is silent
- (iv) Can remove an electoral officer on the majority advice of other Electoral officers on ground of grave misconduct in his duties and such action shall not take effect unless and until his appeal is granted by the judiciary council
- (v) He shall hold office for a parliamentary year and shall during this period not eligible to vote or be voted for at the association Election and shall during his tenure may be removed by the judicial council, on ground of misconduct in his official duties and in accordance with the provisions of the constitution
- (vi) He shall call the first Senate meeting and conduct its election

SECTION G
Electoral Secretary

- (i). shall perform all secretary role of the commission
- (ii). Perform all other duty as assigned to him by the chairman

SECTION H
Electoral PRO

- (i) Shall paste notice of information on matter relating to the election
- (ii) Perform all other duty as assigned to him by the chairman
- (iii) By instruction of the chairman, paste the names of all ELIGIBLE Contestants 48hours before the election

SECTION I

Conduct of Election

- (i) Political campaign for the new general election shall hold from dissolution day to 24 hours before the election
- (ii) Manifesto shall hold the first week day of the election week
- (iii) General election shall hold for three days as follows;

First day: Senate Election

Second day: Swearing-in of senate

Third day: CEC and SRC elections

- (iv). Swearing in of all newly elected association officers shall be performed by the outgoing chief justice in the presence of the association staff advisor.

SECTION J

Conduct of Election into CEC

- (i) Candidature is open to all financial members with categories of level except 100 level members or direct and indirect Jambite
- (ii) Indirect Jambites as specified in (i) above refers to all 200L direct entry students and transfer students (intra and inter)

SECTION K

Conduct of Election into Senate

- (i) Candidature is open to all financial members in all categories of levels
- (ii) 100 level senatorial election shall be conducted by the senate.
- (iii) The senate president must have been a senator for at least one (1) parliamentary year in the Senate (if any)

SECTION L

EXTERNAL ELECTION

The Senate shall approve the candidate of any organization to which the association is affiliated (not political parties) after such student must have notified the senate through the senate clerk to the Senate President in writing. In these case, the senate should carry all arms along, as well as the Nimelssaites.

A direct entry student is not eligible to contest for any external election in the year of entry.

ARTICLE VII

SECTION A STUDENT ADVISOR

- (i) shall be nominated and approved by the Senate
- (ii) **STUDENT** adviser shall see to all program of the association and give normal and educational support to the association.

SECTION B

AWARDS

- (i) Certificate of fellows shall be awarded to the previous Executives, honorable(s) and committee(s) by the new Executives in collaboration with the staff adviser
- (ii) Serving patron and sponsors of the association shall be awarded a certificate of merit
- (iii) Merit award shall be given to members of the association who have distinguished themselves in one field or the other and have done very well in their academic pursuit
- (iv) All awards and certificate must be duly ratified by the Senate

SECTION C

SENATE SITTINGS

- (i) There shall be a minimum of six (6) sittings in any parliamentary Year
- (ii) At least 2/3 of senators shall form a quorum to begin any house sitting and 2/3 of all senators shall be for any decision to take effect
- (iii) In case of subsection (ii) above fails to hold due to emergency or the likes, 1/3 of all senators members shall form a quorum
- (iv) Any senator who deliberately absent him/herself from any sitting twice without notification shall stand suspension as warning
- (v) Any senator who absent him/herself more than 2 consecutive sitting without notification shall be removed and consequently replaced
- (vi) All sittings must commence with LADOKITE anthem.

SECTION D

BYE LAW

- (i) On no account shall any senator/executive/representative walk out of the sitting floor without the senate president permission, else shall be suspended
- (ii) For no reason should abusive and incoherent language rule on the above issue
- (iii) For cases of misleading information, Fraudulent acts, aiding and abetting; such victim shall be subjected to vote of no confidence followed by recovery of the association property
- (iv) Any member who rise up without being recognized by the senate President should be excused for minutes or dismissed if its repeated or proved adamant.

SECTION E

TRANSITION OF GOVERNMENT

- (i) The president shall present report of all their achievements at the penultimate sitting (second to the last sitting)
- (ii) Other committee/subcommittee and other executives of the association shall submit their report and document in their respective offices
- (iii) Judiciary council shall be put in place at first business meeting of the parliamentary year
- (iv) Proper handling over of all related matter at all levels of the offices of the association (CEC & SENATE) should be done at the first sitting of the tenure.
- (v) All account should be frozen at the last sitting of the parliamentary provided all funds have been sorted. If not adhered to, there shall be penalties.

SECTION F

REMOVAL OF CEC

- (i) The senate president shall convene a meeting of the Senate to consider the matter and i.e on any other person Presiding at the meeting shall after he,/ she thinks fit, direct a vote of at least 2/3 of the member of the senate present and Voting provided they form a quorum
- (ii) Any officer of the CEC shall cease to hold office if the removal is supported by 2/3 of the senate present and voting at a meeting provided they form a quorum
 - (a) a notice in writing is given to the senate president that the accused person is

- guilty of misconduct in the performance of the function of his office and
- (b) the notice is signed by not less than one quarter ($\frac{1}{4}$) of all member of senate, and the senate president shall refer the matter to the senate.

SECTION G

REMOVAL OF SENATE PRESIDENT

The senate president shall be removed by the $\frac{2}{3}$ majority of the senate present and voting if found guilty of any crime and offence

SECTION H

RESIGNATION

Any appointed or elected officer of the association may resign his office/Post/seat or other appointment in a written statement to the senate, thereby stating the reason for resignation.

- (i) The officer resigning must, if he holds any executive post, at least two (2) weeks before his resignation will take effect submit a comprehensive report of his official activities to the clerk before his resignation
- (ii) Any association officer resigning under the provision of this Section except the senate president shall tender his resignation to the senate through the senate president. If the senate President is the resigning officer, he shall forward his letter of resignation to the senate through his deputy who shall copy(inform) the student advisor
- (iii) No resignation shall take effect until and unless the competent authority (senate) specializes in this section has accepted it and unless it is done, the resigning officer shall loyally discharge the duties of the office he intends to vacate.
- (iv) The competent authority (senate) may before accepting this resignation refer the case to judicial council if it satisfied that the resignation is frivolous or is attempt to es cape liability for wrong conduct against the interest of the entire students and for which the officer should have otherwise been penalized.

SECTION I

CLUBS, SOCIETIES AND STATE UNIONS UNDER THE ASSOCIATION

- (i) All student clubs, societies and other unions under this association shall be regarded as operational organs
- (ii) The membership of any operational organ shall be open to all students irrespective of their state of origin, sex, religion and nationality.
- (iii) Each operational organ shall produce its constitution at registration including the objectives of the club, society or state union and the names of members of its executive to the proof of association

ARTICLE VIII

SECTION A

AMENDMENT

- (i) Amendment of recitation and/or desperation of any part of this constitution shall be upon resolution passed by not less than 2/3 in a meeting of the senate
- (ii) Any proposed amendment to this constitution must be sent in a written form to the senate clerk at least a week before the said meeting of the senate and it shall be forwarded to all members of the senate stating such amendment in a referendum at least 48hrs before the meeting
- (iii) The proposed amendment shall be pasted on the association board and shall come to effect when approved by a majority of the student casting their vote on the amendment at a referendum held for this purpose
- (iv) All approved amendment or bye-law shall be part of the constitution

SECTION B

MISCELLANEOUS

- (i) The financial secretary must prepare records of the association's due and other income of the association
 - a. the association due must be paid by each student and shall be collected by the new CEC through payment of such funds into the association account and present an evidence of payment for receipt through the Financial secretary
 - b. The association due must be effectively used by the three functional arms of the association (i.e CEC, Senate and Judiciary)
- (ii) The CEC shall be accountable to the senate at the end of each Parliamentary year while the senate and the judiciary shall be accountable to the congress

NIGERIAN MEDICAL LABORATORY SCIENCE STUDENTS' ASSOCIATION (NIMELSSA)
RAISING MOTION IN OFFICIAL MEETINGS OF THE ASSOCIATION

1.0 ADOPTION

1.01 ADOPTION WITHOUT ANY ADJUSTMENT/ RECTIFICATION TO AGENDA

I _____ serving as _____ having seen and heard the agenda being read without any further rectification, hereby move the motion of adoption of the agenda, to be used as the working document for this meeting, by my time _____.

1.02 ADOPTION WITH AN ADJUSTMENT/ RECTIFICATION TO AGENDA

I _____ serving as _____ having seen and heard the agenda being read with a further rectification /adjustment, hereby move the motion of adoption of the agenda, to be used as the working document for this meeting, by my time _____.

1.1 SECONDING

I _____ serving as _____ standing on the existing/ already established protocol, hereby second the motion that was earlier raised, for the adoption of the agenda, to be used as the working document for this meeting, by my time _____.

2.0 ADJOURNMENT

2.01 ADJOURNMENT WITH EXHAUSTED AGENDA

I _____ serving as _____ having being present from the beginning of this meeting and seen the agenda been fully exhausted hereby move the motion for the adjournment of this meeting till the next meeting, by my time _____

2.02 ADJOURNMENT WITH TIME CONSTRAIN

I _____ serving as _____ having being present from the beginning of this meeting and seen the agenda not fully exhausted but time allocated exhausted, hereby move the motion for the adjournment of this meeting till the next meeting, by my time _____

2.1 SECONDING

I _____ serving as _____ standing on the existing/ already established protocol, hereby second the motion that was earlier raised, for the adjournment of this meeting till the next meeting, by my time _____.

Oaths

- (i) Both the senate president and deputy senate president shall before taking their seats in the opening meeting of the senate for the Parliamentary session take and recite before the entire members of that council oaths of allegiance which will be administered by the chief judge of the association
- (ii) The oath shall be taken at the swear-in ceremony of the association

SECTION C

ASSOCIATION PROPERTIES

- (i) Unless otherwise stated in the constitution, each CEC ,senators ,Judicial council officer shall keep continuous inventory of all association properties in his custody whether handed to him/her or procured while in office
- (ii) The respective officer shall obtain copies of all handing over note with respect to property (separate list of which must be prepared by the member and duly signed by the respective outgoing and incoming CEC, senators, judicial council officer for record purposes.
- (iii) At the end of the tenure of the outgoing officers (CEC, senate or judicial council officer) there shall be hand over notes as inventory of the association to the newly sworn-in officers respectively

SECTION D

COMMITTEE IN THE CEC

- (i) They shall be set up at the inception of office of the new CEC. The Committees and its member shall be ratified by senate after which the Committees shall be recognized
- (ii) The committees shall be dissolved alongside with CEC.

SECTION E

STUDENTS REPRESENTATIVE COUNCIL

- (i) The SRC 1 must be a clinical student while the SRC 2 must have spent an academic session
- (ii) The SUG representative seat is an external post i.e outside associations CEC, senate and judicial council.
- (iii) The newly elected sworn in SUG representative for MLS constituency shall not attend the NIMELSSA senate sitting but attend on invitation by the NIMELSSA senate to brief it of the SUG SRC proceedings so far or otherwise
- (iv) Swearing in of the SUG representative (who shall be referred to as honorable) shall be done by the outgoing chief justice of NIMELSSA before that of the SUG SRC

SECTION F

HONORARIUM

- (i) Honorarium in this constitution shall be referred to as fee paid each to every member of the CEC, Senate and Judiciary council at the end of the tenure
- (ii) Senate and the judicial council shall be entitle to refreshment during their Sitzings
- (iii) Transport allowance shall be based on the decision of the CEC depending on the distance covered
- (iv) Feeding up-keep shall be paid per day, for any assignment outside Ogbomoso, with a maximum of seven days.
- (v) Any money spent on behalf of the association with the consent of the CEC is subjected to ratification by the president and financial secretary which is final and binding
- (vi) The members of the executive council shall also be entitled to an honorarium After his/her tenure provided he/she has been declared innocent of Corruption by the NIMELSSA PANEL ON ECONOMIC AND FINANCIAL CRIME (NPEFC)

SECTION G

BUDGET PRESENTATION

- (i) The budget of the association for the parliamentary section shall be referred to as the annual financial statement and the budget shall be presented by the CEC financial secretary to the senate after proper deliberation by the CEC has taken place
- (ii) The financial secretary must present the budget to the senate on/before 30 days of assumption of office after swear in ceremony has taken place. Failure of the financial secretary to present the budget by 30 days of assumption of office he shall be invited by the senate to the sitting where he must explain the reasons for the delay
- (iii) In a situation where the financial secretary fails to honor the senate official invitation or where he cannot give credible reasons for the delay in presentation of the budget, the financial secretary should be given a 7-day ultimatum by the senate to prepare and present the budget
- (iv) If the financial secretary still prove adamant after the ultimatum, a vote of his impeachment should be conducted by the senate and after a 2/3 Vote for the impeachment of the financial secretary, he should be announced impeached by the senate and a bye election should be conducted as quickly as possible by the INEC chairman
- (v) If it happens that financial secretary is impeached and a bye election is being awaited for, other CEC officers should come together and act in the absence of the financial secretary, by presenting the budget through the president of the association to the senate

SECTION H

SOURCE OF INCOME

- (i) Shall be by annual subscription per member dictated timely by the Senate and paid into any bank approved by the association.
- (ii) Any other levies debated upon by the senate general sittings
- (iii) Through funds raised for any project that involves large amount of money
- (iv) By contacting corporate bodies for partnership/sponsorship
- (v) No self- help project dues should be imposed on association members

SECTION I

CONTRACT

- (i) The president has no absolute power awarding a contract
- (ii) The president has the final say as to which a contract should be awarded in case of a capital project, the senate have to ratify the nomination of the president without which the project cannot be effective
- (iii) A Tender (official report) should be submitted for contract but must before the completion of the project seek the ratification by the house and must have reasons for such act.

SECTION J

DISBURSEMENT OF FUNDS

- (i) The association president shall disburse funds
 - (a) If approval for such fund (i.e. budget/capital project) has been ratified by the senate
 - (b) As in such other case, as maybe required for the day to day running of the association.

SECTION K

PROCEDURE FOR DISBURSEMENT

Cash withdrawal forms approved by the president and other Signatories (either financial secretary or general secretary) shall counter sign and must be duly stamped before payment is made

SECTION L

SUG CANDIDATE

- (i) Shall be a clinical student
- (ii) Screening with reps from each level, CEC and Senate
- (iii) In case of tie after election, the senate president votes
- (iv) Candidates should write letter of intention through the CEC president, through senate clerk to senate president.

**NIGERIAN MEDICAL LABORATORY SCIENCE
STUDENTS ASSOCIATION NIMELSSA, LAUTECH
CHAPTER CONSTITUTION**

**AMENDED AND PUBLISHED BY THE 2022/2023
PARLIAMENTARY SESSION**

PRINCIPAL OFFICERS:

Sen. OYEKANMI Ebenezer SENATE PRESIDENT
Sen. ABODERIN Joy..... DEPUTY SENATE PRESIDENT
Sen. MMAHI Abigail SENATE CLERK
Sen. ADEGOKE Adeola..... CHIEF WHIP

CONSTITUTION REVIEW COMMITTEE:

Initiated by the following people in the 2021/2022 tenure :

Comr. ABDULGHANIY Ridwan.....CHAIRMAN
Sen. AJIBADE Daniel.....MEMBER
Sen. ADIGUN Muhammed.....MEMBER
Comr. OJEDIRAN Kayode.....MEMBER
Comr. ADESOYE David.....MEMBER
Sen. OYEKANMI Ebenezer.....MEMBER
Comr. AKINYEMI Oladapo..... MEMBER
Comr. ADEYANJU Oluwatobi..... MEMBER
Comr. OOLORUNYI Pelumi.....MEMBER

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Comrade OLUMIDE Ayomide Hope..... CHAIRMAN
Comrade ADEKUNLE Joshua Favour MEMBER
Comrade OOLORUNYI Pelumi.....MEMBER
Comrade ADEBONA Ridwanullahi Tolani.....MEMBER

Led By: Senator Oyekanmi Ebenezer